

**Circular Memo.No.944/SPL.B/99-5, Genl. Admn. (Spl.B) Dept., dt.01.04.2002:
Vigilance Commission to deal directly with Heads of Departments and lower officials
who are appointing / appellate authorities – instructions**

**Subject Heading : Vigilance Commission - to deal directly with HODs and lower
officials**

- Ref : 1. Govt.Memo.No.1676/SC.D/82-3, dt.10.05.82.
2. G.O.Ms.No.421, G.A.(SC.D) Dept., dt.03.08.93.
3. U.O.Note No.2751/SC.E/95-1, dt.16.09.95.
4. G.O.Ms.No.147, G.A. (Spl.B) Dept., dt.01.05.2000.

According to the present practice, wherever A.C.B. takes up investigations against the Government employees, it sends its report to the Government through the Vigilance Commissioner for further action. Reports of the Anti-Corruption Bureau are received by the Government in respect of all employees including those of Class III and Class IV for whom the Heads of Offices in the District, District Collectors or Head of the Department are the appointing / appellate authorities.

2. The Principal Secretary to Government, Backward Classes Welfare Department has sent proposals stating that in respect of employees for whom disciplinary/appellate authority is upto the level of Head of Department, report of the Anti-Corruption Bureau should be sent to the concerned Head of the Department who should be responsible for pursuing disciplinary action against the officer concerned and the Government at Secretariat level need not concern itself with disciplinary action against Class III and Class IV employees of subordinate offices and these matters can terminate at the level of Heads of Departments.

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3. The Vigilance Commissioner, A.P.V.C. has made certain recommendations for combating corruption in public services. The following is one of the recommendations: "Handling of vigilance and disciplinary matters in the offices of Heads of Departments and other offices are characterised by serious irregularities, unconscionable delay and non-consultation with Vigilance Commission. To avoid these mistakes and to speed up the process, Vigilance Commissioner may be permitted to deal directly with the heads of departments in respect of matters falling solely within their purview or under them i.e., matters in which Heads of Departments or lower officials are appointing / appellate authorities".

4. In the meeting held by the Chief Secretary on 05.05.2000 to consider the recommendations of the Vigilance Commissioner for combating corruption in public services, the recommendation referred to in para 3 above has been considered and it was recommended for acceptance. The Government have accepted the same.

5. Accordingly, Government hereby permit the Vigilance Commissioner, Andhra Pradesh Vigilance Commission to deal directly with the Heads of Departments, District Collectors / Heads of District Offices in the matter in which the said officers are the appointing / appellate authorities. After receiving the advice of Vigilance Commissioner in those cases, the Heads of Departments / District Collectors / Heads of District offices, shall approach the Government in the respective administrative departments for sanction of prosecution or any other orders as advised by Vigilance Commission. The Secretariat Departments shall follow the Business Rules and Secretariat Instructions in cases, where the disciplinary authority proposes to deviate from the advice of the Vigilance Commissioner.